

SENATE No. 798

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to small business health insurance incentives.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>5/8/2025</i>

SENATE No. 798

By Mr. Moore, a petition (accompanied by bill, Senate, No. 798) of Michael O. Moore and James B. Eldridge for legislation relative to small business health insurance incentives. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 687 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to small business health insurance incentives.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 176J of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended after section 13 by inserting the following new section:-

3 Section 13A. The annual rewards or other incentives authorized by section 13(d) of this
4 chapter may also be based upon increased efficiencies in a carrier's administration of health
5 plans offered through the cooperative resulting from the group purchase of said plans, or upon
6 the use of transparency tools by the cooperative to control healthcare costs for members or to
7 educate members regarding proper utilization.

8 SECTION 2. Section 3 of said chapter 176J of the General Laws, as so appearing, is
9 hereby amended after paragraph (d) by inserting the following new paragraph:-

10 (e) Notwithstanding this chapter or any other general or special law to the contrary, a
11 carrier may annually offer small groups a reward or other incentive designed to promote job
12 growth and job retention among small businesses. The amount of such rewards shall be
13 determined by the carrier based upon differences in the cost of administering a plan due to the
14 size of the small group. Any reward established pursuant to this subsection shall be submitted to
15 the commissioner for informational purposes prior to the payment of any such reward. The
16 requirements to qualify for such reward shall be applied equally and consistently to all small
17 group purchasers, treating all similarly situated purchasers that have qualified for the reward in
18 the same manner.